

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.18101 of 2009

Ghulam Qadir **V/S** *Punjab Cooperative Board etc*

J U D G M E N T

Date of hearing	02.10.2019
Petitioner(s) by	M/s Muzammal Hussain Qureshi and Syed Ali Asghar Bukhari, Advocates.
Respondent(s) by	Mr. Nadeem ud Din Malik, Advocate for the Respondents-PCBL.

JAWAD HASSAN, J. Through this petition, the Petitioner has called in question the legality of order dated 05.06.2009 passed by the learned Co-operative Judge (the “*Impugned Judgment*”), whereby the petition filed by him against order dated 28.09.2007 passed by Chairman, PCBL was dismissed.

2. Facts of the case, briefly stated, are that land measuring 122-kanals 18-marlas situated in village Ghannian Tehsil Kamoki, District Gujranwala was purchased by the Petitioner for a consideration of Rs.70,00,000/- through an agreement to sell dated 13.11.1990 from Muhammad Yousaf etc. Out of aforesaid amount, Rs.40,00,000/- were paid by the Petitioner in advance to vendors and Rs.30,00,000/- had to be paid by him at the time of execution of registered sale deed. A condition was imposed in aforesaid agreement that possession was being handed over to the Petitioner who could get it executed in his own name or in the name of any other person of his choice. The Petitioner was operating an account No.1805 with the Respondent No.3 and due to run short of Rs.15,00,000/-, an agreement dated 07.03.1991 was executed between him and Corporation for specific performance relating to land in dispute. Resultantly, the

Petitioner got executed registered sale deed in favour of Corporation vide document No.514 dated 10.03.1991, Bahi No.1 with the Sub-Registrar, Kamoki and thereafter, he moved an application before the Respondent No.2 for issuance of NOC and execution of sale deed in his favour which was rejected on 05.06.2009 with direction to take over possession from him and Petition No.220-C of 2007 filed thereagainst was also dismissed by learned Cooperative Judge on 05.06.2009, hence this petition.

3. Learned counsel for the Petitioner *inter alia* contended that no opportunity was given to the Petitioner to adduce evidence in respect of land measuring 122-kanals 18-marlas; that the Petitioner is in possession of the property in dispute but his contentions were disbelieved without any reason or basis; that the impugned order is without jurisdiction and is the result of mis-reading and non-reading of evidence.

4. Learned counsel for the Respondents supported the Impugned Judgment and submitted that the same has been passed in accordance with law and as such no exception can be made to it; that sale deed was executed in favour of NICFC and record of the defunct Corporation does not support Petitioner's claim for payment of Rs.1.5 million by the NICFC and lastly prayed for dismissal of the instant petition.

5. Arguments heard. Record perused.

6. The sole grievance of the Petitioner agitated before us is that he has neither been heard properly by the Courts below despite of being in possession of the disputed property nor he has been provided an opportunity to produce documentary evidence. Perusal of the record reveals that whole case of the Petitioner is based on alleged agreement to sell executed between him and Muhammad Yousaf etc. It is settled law that agreement to sell is not a title document until or unless it is proved through cogent and confidence inspiring evidence.

7. The story behind the execution of agreement to sell, as alleged by the Petitioner, is that on 13.11.1990, Muhammad Yousaf etc

promised to sell the land against a sum of Rs.70,00,000/- to him and out of the same they acknowledged Rs.40,00,000/- from him and it was agreed upon that till 13.03.1991, the sale deed be got registered in his name or any other person of his choice. Record reveals that sale deed was executed between Muhammad Yousaf etc and NICFC which was registered on 10.03.1991 regarding land measuring 122-Kanlas and 18-Marlas against consideration of Rs.70,00,000/- and out of the same, Rs.40,00,000/- were paid as advance whereas Rs.30,00,000/- were paid before the Registrar by NICFC which indicates that whole of amount was paid by the defunct Corporation. Learned Cooperative Judge, in the impugned order, observed that *“it is found doubtful that the Petitioner had purchased the land for a total consideration of Rs.70 lac and he made payment of Rs.40 lac to the original owners without taking possession thereof as per agreement to sell and if the Petitioner was already in possession of the property, this fact was not got mentioned in the agreement to sell”*. It was further observed that *“the possession was not delivered to the Petitioner in spite of the fact that Rs.40 lac had allegedly been paid by the Petitioner”*. It has been held by the Hon’ble Supreme Court of Pakistan in “Mst. RASHEEDA BEGUM and others Versus MUHAMMAD YOUSAF and others” (2002 S C M R 1089) that *“if agreement to sell had been reduced into writing and attested by witnesses, then its execution must be proved in accordance with provisions of S.68 of Evidence Act, 1872, notwithstanding the fact that the same applied only to document required by law to be attested---Where-agreement to sell had been reduced to writing but 'not attested by witnesses, its execution and the contract embodied therein could be proved by other strong evidence and attending circumstances, which might vary from case to case”*.

8. As far as contention of the Petitioner that he is in possession of the disputed property is concerned, it is pertinent to mention that Chairman PCBL in his order has mentioned that according to Khasra Girdawri, the Petitioner was shown to be in possession of land in dispute from Kharif 1992 onward whereas the sale deed was executed

between Muhammad Yousaf etc and NICFC during Rabi on 10.03.1991. So it is clear that neither the Petitioner produced anything to show his possession over disputed property nor he could prove the same during evidence.

9. We, therefore, agree with the findings of the learned Cooperative Judge who has rightly dismissed the petition filed by the Petitioner and do not see any illegality/perversity or jurisdictional error in the impugned order which has been passed in line with the dictates of law and does not warrant any interference by this Division Bench. Consequently, the petition in hand, being devoid of any merit, is hereby **dismissed**

(AYESHA A. MALIK)
JUDGE

(JAWAD HASSAN)
JUDGE

*Usman**